

Court No. - 4

Case :- WRIT - C No. - 6869 of 2020

Petitioner :- Shlok Sangam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Upadhyay

Counsel for Respondent :- C.S.C., Adarsh Bhushan

Hon'ble Bala Krishna Narayana, J.

Hon'ble Ravi Nath Tilhari, J.

Put up before another Bench of which, one of us i.e. (Hon'ble Mr. Bala Krishna Narayan, J.) is not a member, if possible, as fresh, on 06.03.2020 after obtaining nomination from Hon'ble Chief Justice, showing the name of Shri Mehboob Ahmed, learned counsel for respondent no. 4 and 5.

Order Date :- 5.3.2020

sweta

(Ravi Nath Tilhari, J.) (Bala Krishna Narayana, J.)

Court No. - 46

Case :- WRIT - C No. - 6869 of 2020

Petitioner :- Shlok Sangam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Upadhyay

Counsel for Respondent :- C.S.C., Adarsh Bhushan, Mehboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Jayant Banerji, J.

When the case is taken up, the learned counsel for the petitioner is present. However, none is present on behalf of the respondent nos.4 and 5.

As such, let the matter be placed as unlisted day after tomorrow, i.e., 19.3.2020.

Order Date :- 17.3.2020

SK

Court No. - 46

Case :- WRIT - C No. - 6869 of 2020

Petitioner :- Shlok Sangam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Upadhyay

Counsel for Respondent :- C.S.C., Adarsh Bhushan, Mehboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Deepak Verma, J.

In re: Civil Misc. Urgency Application No.2 of 2020

Let the matter be placed as unlisted on 30th September, 2020.

The application stands disposed of.

Order Date :- 27.8.2020

Radhika

Court No. - 47

Case :- WRIT - C No. - 6869 of 2020

Petitioner :- Shlok Sangam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Upadhyay

Counsel for Respondent :- C.S.C., Adarsh Bhushan, Mehboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

None appears on behalf of the petitioner to address the Court, even in the revised call. Sri Mehboob Ahmad, learned counsel for the respondent is present.

Let the matter be listed in the additional cause list on 06.10.2020.

Order Date :- 30.9.2020

Lbm/-

Case :- WRIT - C No. - 6869 of 2020

Petitioner :- Shlok Sangam

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Arvind Kumar Upadhyay

Counsel for Respondent :- C.S.C., Adarsh Bhushan, Mehboob Ahmad

Hon'ble Naheed Ara Moonis, J.

Hon'ble Vivek Varma, J.

Heard the learned counsel for the parties.

The present writ petition has been filed with the following relief;

(i) Issue a writ, order or direction in the nature of certiorari for quashing the impugned recovery certificate dated 16.12.2019 passed by respondent no.3 (Tehsildar, Tehsil Nizamabad, district Azamgarh) (Annexure No. 6 to this writ petition).

(ii) Issue a writ, order or direction in the nature of mandamus commanding the respondent no. 4 & 5 to restore and reconnect the Electricity Connection No. AT02201/025405 of the petitioner situated in village and post Tiggipur, Tehsil Nizamabad, district Azamgarh within stipulated period from the command of this Hon'ble Court.

(iii) Issue any other order or direction, which this Hon'ble Court may deem fit and proper under the facts and circumstance of the case.

(iv) Award the cost of the petition."

The learned counsel for the petitioner is not disputing the amount demanded by the respondent no. 3. He submits that he is ready to pay the amount in instalment.

Sri Mehboob Ahmad, the learned counsel for the respondent nos. 4 and 5 has no objection. He submits that under Clause 6.14 of Electricity Supply Code 2005 there is a provision to deposit the amount in instalments.

Under such circumstance, the present writ petition is disposed of with the direction to the petitioner to approach the respondent no. 4 within two weeks along with a representation who will consider the grievance of the petitioner as per Clause 6.14 and shall pass appropriate order in

accordance with law within two weeks. The amount, if any, deposited by the petitioner shall be adjusted while fixing the instalment of the due amount.

Order Date :- 6.10.2020

Shahnawaz